

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on October 13, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 13, 2023, a complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against COLEGIO BILINGUE DE GRANADA, S.L. (hereinafter, the respondent) for not having adequately addressed his right to erasure.

The complainant, on June 22, 2023, sent an email to the respondent at the email address listed in their privacy policy, \*\*\*EMAIL.1, requesting "(...) to exercise my right to the erasure of my personal data that is in your databases and that you please refrain from sending me unwanted emails" without having received a response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record in this Agency of any response having been submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on January 3, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments they deemed appropriate within a period of ten working days.

The respondent has indicated, in summary, that on June 22, 2023, a generic informational circular was sent to the parents of the students at the center through the digital platform for managing student files (educational suite) called ALEXIA, indicating, in summary and without specifying any data of any student, the results obtained in a general computation by the students of the center in the EvAU test (Evaluation for Access to University). (...)

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The responding party states that, after sending that communication, it received an email from the claiming party "(...) indicating to delete their data, as well as not to send any type of communication. (...)".

"(...) Following the receipt of the aforementioned email, the corresponding administrative tasks were immediately carried out on the platform to disable the sending of information and communications that are usually conducted as part of the normal development of the center's courses, and which are sent to the parents of students who voluntarily registered on said platform, as is the case of Mr. A.A.A.

Notwithstanding the above, it was possible to understand the administrative error committed by the center, since, due to the administrative tasks that are usually carried out at the end of each academic year, work was being done on the ALEXIA platform with the 2020-2021 course (grades and promotions of students), specifically with the class to which the student (...) belonged, and the aforementioned informative circular was issued, which was intended to be sent to the parents of the students enrolled in the 2022-2023 course, although since the session for the 2020-2021 course was open, it was mistakenly sent to the parents of the students enrolled in that academic year. (...)

Due to the need to have the academic records of the students by the educational center, and although they are no longer enrolled in the center, due to the imposition of educational regulations, they are available on the ALEXIA platform for the educational control authority, as well as for the interested

parties themselves (issuance of grade certificates, titles requested from the Ministry, etc.), such data of students and parents remain in a "historical" section on the platform, with no possibility of sending any information of any kind, except upon express request from them. This is so because the data of the academic record is governed by its own regulations. (...)

FIFTH: After having carried out on the platform, immediately after receiving the indicated email on 22/06/23, requesting the deletion of personal data, as well as any type of information sending by the center, the appropriate verifications to disable the option to send any type of requested information, the center considered that this request had been addressed, although it is true that this action was not communicated to Mr. A.A.A., as it understood that what was contained in that request was satisfied, after carrying out the aforementioned tasks on the platform, leaving only the academic record data available to the educational authority, as well as to the students and their parents who might request any grade certificate, as well as the student's own educational record."

FOURTH: After examining the document submitted by the responding party, it is transferred to the claiming party, so that, within ten working days, they may formulate any allegations they deem appropriate.

The claiming party has indicated, in summary, and as far as this procedure is concerned, "That the absence of communication regarding the result of my request due to an error or oversight seems to cease being a possibility when the BILINGUAL SCHOOL OF GRANADA did not respond, either, to the request for clarifications made by the..."

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Spanish Agency for Data Protection (hereinafter, AEPD) on 3/11/2023, before the complaint was admitted for processing. I understand this request from the AEPD as a necessary and reasonable conciliatory attempt aimed at rectifying possible errors or oversights. The absence of a response to this request seems to suggest or, in the absence of further information, could be interpreted as a clear determination by the CBG not to communicate the outcome of my request.

I now understand the FIFTH allegation of the CBG as that written communication that my data has been effectively deleted from the CBG's databases. I also understand the aforementioned FIFTH allegation as an acknowledgment of the CBG's intention not to communicate the outcome of my request, thus violating what I considered a right. (...)

FIFTH: After granting a hearing to the respondent party, it stated that "(...) it carried out the necessary actions to delete (block the claimant's data), leaving only the data required available to the educational authority, in relation to the academic record of their minor child, in compliance with said educational regulations.

(...) That the entity understood that having carried out the necessary actions on the educational platform Alexia, regarding the claimant's profile, which included data blocking, as well as not sending him emails again, was sufficient to address and satisfy his claims."

The respondent party also indicated "(...) that after the internal inquiries carried out by the entity, there is no record of the notification from the AEPD referred to, dated 03/11/23, so its content could not be known and responded to."

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not

contradict them, subsidiarily by the general rules on administrative procedures."

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II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns to this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that it had provided the claimant with the due response.

The result of this forwarding did not allow for understanding the claims of the claimant to be satisfied. Consequently, on January 3, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After that period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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III

### Rights of Individuals in Relation to Personal Data Protection

The rights of individuals in relation to personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

#### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;

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f) the personal data has been obtained in relation to the offer of information society services mentioned in Article 8, paragraph 1.

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers who are processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 could make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

#### Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

Before proceeding to analyze the substance of the matter, it should be noted that, regarding the statements of the responding party indicating "(...) that following internal inquiries carried out by the entity, there is no record of the notification from the AEPD referred to, dated 03/11/23, so its content could not be known and responded to," it is recorded in this file that there is a certificate from the Single Enabled Electronic Address (DEHÚ) service of the acceptance of the notification made available to that responding party and the date of access to its content, November 3, 2023.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, from the examination of the documentation provided, it has been established that the complaining party requested the deletion of their data from the responding party and that they cease sending unwanted email communications. During the processing of this procedure, the responding party has stated that it has proceeded to comply with the request, leaving their personal data blocked.

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However, no documentary evidence has been provided that would allow for the consideration that a response has been expressly given to the claimant, thus fulfilling the duty of response established in Article 12.4 of the LOPDGDD.

Therefore, it cannot be accepted that the response that should be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the present procedure, which was initiated precisely for failing to adequately address the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible are obliged to issue, even in the event that there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Since no copy of the necessary communication that must be directed to the claimant informing them of the decision made regarding the exercise of rights request is attached, it is appropriate to uphold the complaint that initiated the present procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge COLEGIO BILINGUE DE GRANADA, S.L. with NIF B18941567, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could lead to the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to COLEGIO BILINGUE DE GRANADA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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